WAREHOUSING AGREEMENT

BETWEEN

STORAGE KINGS NG LIMITED

AND

MR & MRS Sylvester Uwadiegwu

Scanned with CamScanner

THIS AGREEMENT made the 13th day of January 2024 between **STORAGE KINGS NG LIMITED** a company incorporated under the laws of Nigeria whose registered office is at No. 10 Benford William Close Victoria Island, Lagos (hereinafter called "**SKN**") of the one part and _____ whose registered office is at _____ (hereunder called the "Company" of the other part).

In consideration of the mutual covenants contained in this agreement, the parties agree as follows:

1. RATES FOR STORAGE AND HANDLING

Depositor engages Storage kings Ng Limited to perform, and Storage kings Ng Limited agrees to perform, storage and handling of the following merchandise, referred to in this agreement as "Goods", at the following rates, as required by Depositor in the course of its business during the term of this agreement.

2. TERMS OF AGREEMENT

This agreement shall be operative for a period of 3 Months commencing 13th January, and ending 13th April

3. STORAGE OF GOODS

a. All storages take place 72 hours upon full payment confirmation.
b. No refund, payment is final.

c. All charges for storage are per boxes (or other agreed unit) per month, quarterly or yearly.

d. Storage charges become applicable on the date that Storage Kings Ng Limited accepts care, custody and control of Goods, regardless of the unloading date or the date of issue of warehouse receipt.

e. When mutually agreed on by Storage kings NG Limited and Depositor, a storage month all storage charges are due and payable on the 29th day after receiving items.

f. Depositor who do not pay (as and when due) or leave their goods with Storage Kings Ng Limited after expiration of due dates are liable to pay 10% of their due interest.

Scanned with CamScanner

4. HANDLING OF GOODS

a. The handling rates set forth in section one cover the ordinary labor involved in receiving the Goods, packaging of the goods and placing the Goods in storage. Handling charges are due and payable on receipt of Goods.

b. Pre inspection of intended goods for storage are examined by the inspection officer within 24 hours of full payment received.

c. Unless otherwise agreed, the following services shall be subject to an additional charge:

i. Transportation To and Fro the warehouse.
ii. Labor for unloading and loading of goods unto vehicles.
iii. Uninstallation and dismantling of goods and items.
iv. Boxing of items.
v. Items brought outside the day of storage of goods in customer storage.

5. SPECIAL SERVICES

Special services, including but not limited to the following shall be provided by Storage Kings Ng Limited to Depositor subject to additional charge.

a. Storage Kings Ng Limited labor required for services other than ordinary handling and storage.
b. Receipt or delivery of Goods, by prior arrangement, in other than usual business hours.
c. Provision of dunnage, bracing, boxes, packing materials, or other packing supplies.
d. Communication services, including postage, telegram, or telephone, if the services concern more than normal inventory reporting or if, at the request of Depositor, communications are made by other than regular mail.
e. Compiling of special stock statements.
f. Reporting marked weight, serial numbers, or other data from packages.
g. Physical check of Goods.
h. Handling transits billing.
i. Insurance of Goods received.
j. Goods received at warehouse with requirements of temperature stability or temperature preferences.
k. Customers are entitled to 3 visitations based on appointment, where those visitations are exhausted additional charge of #7000 will apply on subsequent appointments within the month.

Scanned with CamScanner

6. REFUSAL OF GOODS

Storage Kings Ng Limited will not be storing the following items below.

a. Drugs and narcotics.
b. Hard drugs.
c. Expired pharmaceutical drugs.
d. Explosives and combustible goods.
e. Items illegally obtained.
f. All banned goods and items as instructed by all directorate agencies of the republic of Nigeria.
g. Items rejected at the discretion of the store manager.

NOTE:

Storage Kings Ng Limited hereby indemnified in the concealment of any of the above listed.

7. MOVING OF GOODS

Storage Kings Ng Limited reserves the right to move, at Storage Kings Ng Limited expense 7days after notice sent by registered mail to Depositor or to the last known holder of a negotiable Storage kings Ng Limited receipt covering such Goods, any Goods in storage from Storage Kings Ng Limited in which they may be stored to any of Storage Kings Ng Limited warehouse. Depositor or holder takes delivery of the Goods in lieu of transfer; no storage charge shall be made for the current storage week.

Storage Kings Ng Limited reserves the right to move items within warehouse or transfer to a different warehouse, at the discretion of the store manager without notice or charge to the depositor.

8. TERMINATION OF STORAGE

a. You will be notified 7 days before termination of your storage.

b. On written notice to Depositor and to any other person known by Storage Kings Ng Limited to claim an interest in Goods, Storage Kings may require the removal of any Goods by the end of the next succeeding storage cycle. Notice shall be given to the last known place of business or residence of the person to be notified. If Goods are not removed before the end of the next succeeding storage week, Storage Kings Ng may sell them in accordance with applicable law.

c. In the event that, as a result of a quality or condition of Goods of which Storage Kings Ng Limited had no notice at the time of deposit. Goods are a hazard to other property, to the warehouse in which Goods are stored, or to any person. Storage Kings Ng Limited may sell

Scanned with CamScanner

Goods at public or private sale without advertisement on reasonable notification to all persons known to claim an interest in Goods. If Storage King Ng Limited, after a reasonable effort, is unable to sell Goods. Storage Kings Ng Limited may dispose of Goods in any lawful manner and shall incur no liability by reason of such disposition.

d. In the event that Storage kings Ng Limited, in good faith, believes that Goods are about to deteriorate or decline in value to less than the amount of Storage Kings Ng Limited lien before the end of the next succeeding storage week. Storage Kings Ng Limited may specify in the notification any reasonable shorter time for removal of Goods. If Goods are not so removed Storage Kings Ng Limited may sell Goods to public sale held [Number of days after advertisement or posting as is required by law].

9. TRANSFER BY DEPOSITOR

Instructions by Depositor to Storage Kings Ng Limited to transfer Goods on the books of Storage Kings Ng Limited are not effective until delivered to and accepted by Storage Kings Ng Limited, and all charges up to the time transfer is made are chargeable to Depositor, if a transfer involves rehandling Goods, such rehandling shall be subject to a change.

10. NOTICES

Any notice or communication required to be given or served upon either party to this agreement shall be sent through Email.

11. DELIVERY OF GOODS

a. Goods shall be delivered or transferred only on receipt by Storage Kings Ng Limited of complete instructions properly signed by Depositor. When no negotiable Storage King Ng Limited receipt is outstanding, goods may also be delivered on instruction over telephone in accordance with a prior written authorization, but Storage Kings Ng Limited shall not be responsible for loss or error occasioned by such delivery.

b. When Goods are ordered out, a reasonable time shall be given Storage Kings Ng Limited to carryout instructions. In the event that Storage Kings Ng Limited is unable because of acts of God, war, public enemies, seizure under legal process, strikes, lockouts, riots, or any other reason beyond Storage Kings Ng Limited's control, because of any other excuse provided by law. Storage kings Ng Limited shall not be liable or failure to carry out such instructions and Goods remaining in storage shall continue to be subject regular storage charges.

Scanned with CamScanner

c. In the event that a negotiable warehouse receipt has issued, no Goods covered by that receipt shall be delivered, or transferred on the books of Storage Kings Ng Limited, unless the receipt, properly endorsed, is surrendered for cancellation or for endorsement of partial delivery. If a negotiable receipt is lost or destroyed, delivery of Goods may be made only on order of a court of competent jurisdiction and the positing of security approved by the court.

12. LIABILITY OF STORAGE KINGS NG LIMITED

a. Storage Kings Ng Limited shall not be liable for any loss or injury to Goods however caused unless the loss or injury results from failure by Storage Kings Ng Limited to exercise such care in regard to Goods as a reasonable careful man would exercise under like circumstances and Storage Kings Ng Limited is not liable for damages that could not have been avoided by the exercise of such care.
b. Goods are not insured by Storage Kings Ng Limited against loss or injury however caused.
c. Storage Kings Ng Limited shall not be liable for Acts of God resulting in damage to company's products and provided that Storage Kings Ng Limited undertakes to store the company's products in suitable warehouse and conditions. Acts of God include earthquakes, windstorm, flood, pandemic, or other natural disasters.

13. JURISDICTION

Governing Law and Dispute Settlement

a. In the event that any disagreement arises between the Parties in connection with this Agreement or any matter arising thereto which the Parties cannot agree upon, then any Party (the "Initiating Party") can invoke the dispute resolution procedure by sending a written notice to the other party (the "Responding party") describing the nature of the dispute and designating an officer of the Initiating Party with appropriate authority to be its representative in negotiations relating to the dispute. The Responding party shall, within ten (10) working days of the receipt of such notice, send a written notice to the Initiating Party, designating an officer of the Responding party with appropriate authority to be its representative in negotiations relating to the dispute;

b. Within ten (10) working days of the receipt by the Initiating party of the written notice of the Responding Party, the representatives of each party shall enter into good faith negotiations with a view to resolving the dispute. If the dispute is not resolved within eighteen (18) working days of the commencement of such negotiations, or such longer period as may be agreed upon, either party may, by written notice to the other Party, terminate the negotiations and refer the matter to the Arbitrator.

Scanned with CamScanner

c. All disputes arising in any way out of or affecting this agreement shall be referred to arbitration under the rules of Arbitration of the Lagos Court of Arbitration from time to time before a single arbitrator whose decisions shall be final. The seat of arbitration shall be Lagos, Nigeria. The Applicable law is the Lagos State Arbitration Law, All proceedings shall be in English Language.

d. This agreement shall be construed in all aspects as subject to Nigeria Laws, the rights of the parties under this agreement shall be governed by the subsisting laws in Nigeria.

14. FORCE MAJEURE

Either party shall not be liable or be deemed to be in breach of this agreement by any reason of any delay in performing or any failure to perform any obligations under this agreement if the delay or failure was due to any cause beyond reasonable control of the party in question. Without prejudice to the generality of the foregoing the following shall be regarded as caused beyond the reasonable control of either party or, as the case may be, of a sub-contractor of SKNL or the Company

a. act of God or accident;

b. war or threat of war, Pandemic, Lockdown, sabotage, civil disturbance or requisition;

c. acts, restrictions, regulations, byelaws, prohibitions, or measures of any kind on the part of any governmental, parliamentary or local authority;

d. import and export regulations or embargoes;

e. strikes, lockouts or other industrial actions or trade disputes, whether involving employees of SKNL / Company

In any such circumstances or in the event of any other matter beyond the control of either party, such party shall immediately the force majeure arises give written notice to the other party declaring that the work or matter is not capable of being completed and shall be deemed to be frustrated from the date of such notice.

Should force majeure continue for a period of more than ninety (90) days, then either party will be entitled to cancel parts of this agreement affected by force majeure forthwith.

Scanned with CamScanner

15. CONFIDENTIALITY AND RESTRAINT

a. Each party, including its employees, is under a duty not to disseminate, or use for its own purpose during the term of the Agreement, any "confidential information" imparted to a party by the other party other than in the normal course of business. Confidential information in regard to these contractual obligations will mean any information imparted to a party by the other party in writing and designated therein as confidential information except;

i. Information learned is or becomes known publicly through no fault of the other party.

ii. Information already known to the other party before receipt from or development for the disclosing party as shown by the receiving party's written record.

16. TITLES

The marginal headings are inserted for convenience only and do not form part of the agreement.

IN WITNESS WHEREOF the parties have authorized their representatives to execute this agreement for and on their behalf on the date and year first above written.

Signed by the authorized signatory of Storage Kings Ng Limited:

Name:

Title: Finance Account

Signature & Date: 13th Jan 2024

Admin Officer

In the presence of:

Signature/date: 13th January 2024

Name: Gbenga Edward

Address: 266 Awori, Dolphin Estate

Occupation: Store Manager

Scanned with CamScanner

Signed by the authorized Signatory of _____:

Name: Sylvester Uwadiegwu

Title: MR 'S.N.U'

Address: 7 Prince Ademola Eleta way.

Occupation: Retired Industrialist

Forwarding Address: Same above.

Contact Number: 07060852098.

Signature & Date: _____. 13/1/2024.

In the presence of Mrs Sylvester,

Signature/date: _____,

Next Of Kin Name: Emmanuel Uwadiegwu & Iyke Uwadiegwu

Next Of Kin Address: 7 prince ademola Eleta way.

Next Of Kin Occupation: civil Servant.

Next Of Kin Forwarding Address: Same above

Next Of Kin Contact Number: 09042601295.

Scanned with CamScanner

SCHEDULE A

List of Goods/Products

Scanned with CamScanner

SCHEDULE B

Specified Areas/Locations

1. Lagos

2.

3.

Scanned with CamScanner

SCHEDULE C – CHARGES/RATES

1. FIXED MONTHLY MINUMUM

Location Nuprest	Agreed Space (Sqm)	Agreed Space (Type)	New Fixed Monthly Minimum (N)
Mini Space		Mini Space	3 Months Contract

Please Note:

. 7.5% VAT will be added to all rates.

Storage and documentation

Handling

Security

H.R (Personnel cost)

Power and Utilities

Information Management

Scanned with CamScanner